

26SMCV02444 26SMCV02444

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

June 29, 2026

CASE NUMBER

26SMCV02444

MOTION

Motion for Order to Remove Inadvertently Filed Public Documents

MOVING PARTY

Plaintiff Thomas Soliz

OPPOSING PARTY

none

MOTION

This case arises from a dispute concerning the alleged breach of a settlement agreement.

On May 1, 2026, Plaintiff Thomas Soliz ("Plaintiff") brought suit against Defendants Scott Chaplan and Del Rey Urban Brokerage, Inc. ("Defendants") alleging three causes of action for (1) breach of contract; (2) breach of the implied covenant of good faith and fair dealing; and (3) unjust enrichment.

On May 12, 2026, the Court initially denied Plaintiff's application for leave to file under seal Exhibit A to the Complaint (the parties' settlement agreement) and references thereto in the Complaint, on the grounds that Plaintiff had not lodged with the Court the document proposed to be sealed and that request to seal the entire settlement agreement was unlikely to be sufficiently narrowly tailored.

On June 8, 2026, the Court denied Plaintiff's renewed application for leave to file Exhibit A under seal, finding that although Plaintiff had cured the prior procedural deficiency of failing to lodge the exhibit with the Court, Plaintiff's request was not narrowly tailored, and indeed, the agreement did not appear to contain any private financial information (such as bank account numbers) warranting any sealing.

Plaintiff now moves for an order to remove Exhibit A from the public docket as having been inadvertently filed. The motion is unopposed.

ANALYSIS

"In general, the moving party must carry the initial burden of informing its opponent and the court of the specific basis for its motion. If the rule were otherwise, then the party opposing the motion would have to try to guess, and then refute, every possible basis for the motion, which would always be inefficient and would often produce arbitrary results." (People v. Williams (1999) 20 Cal.4th 119, 129, citation omitted.)

On that premise, the Court finds that Plaintiff has not advanced any authority in his moving papers which would

warrant the relief sought in violation of California Rules of Court, rule 3.1113(b) which provides: "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (See, e.g., Chavez v. Netflix, Inc. (2008) 162 Cal.App.4th 43, 52 [trial court was justified in denying the motion on procedural grounds due to deficient memorandum in support of motion].)

Similarly, the Second District Court of Appeal, in affirming the trial court's denial of post-trial motions on procedural grounds, observed: "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (Quantum Cooking Concepts, Inc. v. LV Associates, Inc. (2011) 197 Cal.App.4th 927, 934.)

Accordingly, the Court denies will deny Plaintiff's motion as procedurally defective.

Notwithstanding, to the extent that Plaintiff is again seeking to "seal" Exhibit A from the public record, the Court finds that endeavor to be equally flawed because Plaintiff does not raise any new arguments as to why some or all of Exhibit A is subject to sealing by the Court. (See Minute Orders of May 12, 2026 and June 8, 2026 which are incorporated by this reference.)

CONCLUSION AND ORDER

For the reasons stated, the Court denies Plaintiff's motion without prejudice as procedurally defective.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: June 29, 2026 ____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court